

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,

LTD.,

Respondents.

DOCKET NO. 25-04

**DECLARATION OF JOHN LONGSTRETH IN SUPPORT OF RESPONDENTS’
OPPOSITION TO COMPLAINANT’S MOTION FOR ORDER INSTRUCTING
AMAZON TO REMOVE ATTORNEYS’ EYES ONLY DESIGNATIONS**

I, John Longstreth, hereby declare as follows:

1. I am a partner at K&L Gates, LLP, counsel for Respondents Amazon.Com Services LLC, Amazon Logistics Inc. and Beijing Century Joyo Courier Service Co., Ltd. (“Amazon”) in the above-captioned matter.

2. I am a member in good standing of the Bars of the District of Columbia, United States District Court for the District of Columbia, United States Court of Appeals for the District of Columbia and Federal Circuits, and the Supreme Court of the United States, among others.

3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.

4. I submit this declaration in support of Respondent’s Opposition to Complainant’s Motion For Order Instructing Amazon to Remove Attorney’s Eyes Only Designations (the “Opposition”).

5. On October 16, 2025 I received a letter from Complainant's counsel regarding discovery (the "Oct. 16 Letter"). A true and correct copy of the portions of the Oct. 16 Letter related to AEO designations is attached as Exhibit A hereto.

6. On October 28, 2025, my office produced documents to Complainant. This production removed redactions from certain previously-produced documents and produced certain newly unredacted documents with AEO designations.

7. On November 6, 2025 I received a letter from Complainant's counsel regarding "Amazon's 'Attorney's Eyes Only' Designations & 'Third Party Information' Redactions" (the "Nov. 6 Letter"). A true and correct copy of the Nov. 6 Letter is attached as Exhibit B hereto.

8. On November 10, 2025, my office sent a letter (the "Nov. 10 Letter") in response to the Oct. 16 letter sent by Complainant's counsel. This letter included a section on "Third-Party Information" that sought to address the concerns raised in the Nov. 6 Letter. A true and correct copy of the portions of the Nov. 10 Letter related to AEO designations is attached as Exhibit C hereto.

9. On November 12, 2025, the parties conducted a meet and confer via videoconference. "Attorney's Eyes Only" designations were not discussed. I received an email from Complainant's office following the meeting acknowledging that "attorneys' eyes only" designations were not raised on the call and seeking Amazon's position regarding the "Attorney's Eyes Only" designation issue. A true and correct copy of these exchanges is attached as Exhibit D.

10. Between November 17 and November 21, 2025, my office exchanged emails with Complainant's counsel seeking to resolve the "Attorney's Eyes Only" designation issue. A true and correct copy of the portions of these exchanges related to AEO designations is attached as Exhibit E.

11. Three examples of documents produced on October 28, 2025 that were designated as Attorneys Eye's Only have the Bates number ranges AMZ-00001646–1657, AMZ-00001450–

1457, and AMZ-00000728 (reproduced from excel file to PDF). A true and correct copy of these documents are attached respectively as Exhibits F, G, and H hereto.

I declare under penalty of perjury that the foregoing is true and correct.

DATED: December 17, 2025

____/ s_ John Longstreth____
John Longstreth

CERTIFICATE OF SERVICE

I certify that on this 17th day of December, 2025, the foregoing document has been filed with the Secretary for the public docket, with a copy to judges@fmc.gov and served on the following counsel of record, as provided by the Initial Order in this proceeding.

/ s / John Longstreth

John Longstreth

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